

1. 21CV03075 Hall, Chantelle v. City of Chico

EVENT: Plaintiff's Motion for Sanctions Against the City of Chico

On the Court's motion, Plaintiff's Motion for Sanctions Against the City of Chico is continued to September 30, 2026 at 9:00am.

2. 25CV01735 Pereira, Kirsten v. Weller Brothers Inc et al

EVENT: Defendants' Motion to Consolidate Actions for Trial

Defendants' Motion to Consolidate Actions for Trial is DENIED. The Court finds that despite the fact the cases arise from the same vehicular incident, there are potentially factual and legal issues specific to each case.

3. 25CV02760 Augustine, Elizabeth v. Sandrowski, Thaddeus

EVENT: Defendant Thaddeus Sandrowski's Motion for Leave to File Cross Complaint

Defendant Thaddeus Sandrowski's Motion for Leave to File Cross Complaint is GRANTED. Defendant shall separately file the proposed cross-complaint. The cross-complaint is deemed served on all parties. The Court will sign the proposed order with this modification.

4. **25CV05091 De Baun, Roger Dale v. Fulton, Lauren Lynn et al.**

EVENT: Defendants Mahmood Merchant and Amina Merchant, as Trustees of the Merchant Family Living Trust, Demurrer to Plaintiff's First Amended Complaint

Preliminarily, the demurrer is overruled on uncertainty grounds. Demurrers for uncertainty are disfavored, and are granted only if the pleading is so incomprehensible that a defendant cannot reasonably respond. (*A.J. Fistes Corp. v. GDL Best Contractors, Inc.*, (2019) 38 Cal. App. 5th 677, 695)

Premises Liability

The demurrer is OVERRULED. Paragraph 45 of the FAC sufficiently alleges facts that Defendant created and/or increased the dangerous condition on the sidewalk.

Title III of the ADA

The demurrer is SUSTAINED WITH LEAVE TO AMEND.

Plaintiff does not dispute that liability under Title III of the ADA does not arise simply because the public sidewalk adjacent to the business is in violation of the ADA. Both sides acknowledge the alleged discrimination must have a connection to the goods or services of the physical public accommodation. The FAC does not allege a connection between the services Defendant Merchant provides (i.e., lodging) and an ADA violation. It does not allege the hotel was inaccessible due to some underlying ADA violation within the hotel property.

CDPA

The demurrer is SUSTAINED WITH LEAVE TO AMEND. As Plaintiff acknowledged, ADA liability is a pre-requisite to California Disabled Persons Act liability.

Unruh Claim

The demurrer is SUSTAINED WITH LEAVE TO AMEND. Plaintiff's claim is derivative of his ADA claim.

Public Nuisance

Consistent with the ruling on the premises liability claim, the demurrer is OVERRULED.